Pawan Kumar Saxena And 3 Others vs State Of U.P. Thru. Civil Sectt. Home ... on 15 April, 2024

Author: Shamim Ahmed

Bench: Shamim Ahmed

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

Neutral Citation No. - 2024:AHC-LKO:30011

Court No. - 27

Case :- APPLICATION U/S 482 No. - 2752 of 2024

Applicant :- Pawan Kumar Saxena And 3 Others

Opposite Party :- State Of U.P. Thru. Civil Sectt. Home Deptt. Lko. U.P. And Another

Counsel for Applicant :- Prem Kumar Srivastava,Anuj Kumar Shukla

Counsel for Opposite Party :- G.A.

Hon'ble Shamim Ahmed,J.

1. Heard Sri Prem Kumar Srivastav, learned counsel for applicant and Sri Ashok Kumar Singh, learned AGA-I for the State and Smt Preeti Srivastava who appears in person.

2. This application u/s 482 Cr.P.C. has been filed with the prayer to quash the charge-sheet filed by the Investigating Officer in Case No. 20106/2019, Case Crime No. 129/2017, under Sections 498A, 323, 504, 495 I.P.C. and Section 3/4 D.P.Act, Police Station Thakurganj, District Lucknow and to quash the entire proceedings of Case No. 20106/2019, Case Crime No. 129/2017, under Sections

498A, 323, 504, 495 I.P.C. and Section 3/4 D.P.Act, Police Station Thakurganj, District Lucknow, pending in the court of Special A.C.J.M. C.B.I. (A.P.) Lucknow.

3. This Court vide order dated 21.03.2024 passed the following order:

> "Heard Shri Prem Kumar Srivastava, learned counsel for the applicants and learned AGA for the State.
>
> The proceedings arise out of a matrimonial dispute. That dispute has been settled between the parties through the process of mediation. Mediation report has been appended as Annexure-3 to this application.
>
> List this matter on 15th April, 2024 as fresh.
>
> Both the parties shall appear in person before the Court on the next date of listing.
>
> Till further orders of the Court, the effect and operation of the Case No.20106 of 2019, arising out of Case Crime No.129 of 2017, under Sections 498A, 323, 504, 495 IPC and 3/4 D.P. Act, Police Station- Thakurganj, District- Lucknow shall remain stayed. "

4. In compliance of order dated 21.03.2024 the applicant Pawan Kumar Saxena and the opposite party No.2-Smt Preeti Srivastava is present before this Court in person. Sri Pawan Kumar Saxena was identified by this counsel Sri Prem Kumar Srivastava and Smt Preeti Srivastava is contesting the matter in person and she has not engaged any Advocate.

5. Learned counsel for the applicants submits that the matter was referred to the Median and Conciliation Centre, Allahabad High Court, Lucknow for settlement between the parties, thereafter mediation took place and the parties have entered into an amicable settlement. As per the report of the Mediator of Median and Conciliation Centre, Allahabad High Court, Lucknow the dispute between the parties have amicably settled and it has been agreed to live together and both the parties undertake to withdraw all pending cases/FIR/applications etc against each other i.e. Case No. 494/2014 (Preeti Vs. Pawan Kumar) under Section 12 of Domestic Violence Act, pending with ACJM Lucknow, Case No. 122/2014 (Preeti Vs. Pawan Kumar) under Section 125 Cr.P.C. pending before ADJ/FTC II, Lucknow. The copy of the report of the Mediator of Median and Conciliation Centre, Allahabad High Court, Lucknow dated 01.03.2019 is on record.

6. The applicant Pawan Kumar Saxena and the opposite party No.2-Smt Preeti Srivastava submit that the present case was left out and was not mentioned in the aforesaid settlement agreement due to bona fide mistake and the opposite party No.2-Smt Preeti Srivastava submits that she is no interested to contest this case also i.e. Case No. 20106/2019, Case Crime No. 129/2017, under Sections 498A, 323, 504, 495 I.P.C. and Section 3/4 D.P.Act, Police Station Thakurganj, District Lucknow, pending in the court of Special A.C.J.M. C.B.I. (A.P.) Lucknow.

7. Learned counsel for the applicants further submits that in view of the settlement arrived at between the parties, now no dispute remains between the parties and nothing remains to be adjudicated by this Court in the aforesaid proceedings, therefore, no useful purpose would be served if the proceedings of the aforesaid case go on further.

8. Sri Ashok Kumar Singh, learned AGA-I for the State also supported the arguments as advanced by the learned counsel for the applicants and submits that as the parties have entered into a settlement agreement on 11.03.2019 before the Mediation and Conciliation Centre of this Court and as per the statement made before this Court, the oppsoite party does not want to contest this case, no useful purpose would be served keeping the matter pending, and he has no objection, if the present proceedings are quashed.

9. Learned counsel for the parties has drawn the attention of this Court and placed reliance on the judgment of the Hon'ble Apex Court in support of their case.

(i) B.S. Joshi Vs. State of Haryana & Others 2003 (4) ACC 675.

(ii) Gian Ssingh Vs. State of Punjab 2012 (10) SCC 303.

(iii) Dimpey Gujral And Others Vs. Union Territory Through Administrator 2013 (11) SCC 697.

(iv) Narendra Singh And Others Vs. State of Punjab And Others 2014 (6) SCC 466.

(v) Yogendra Yadav And Others Vs. State of Jharkhand 2014 (9) SCC 653.

10. Summarizing the ratio of all the above cases the latest judgment pronounced by Hon'ble Apex Court in the case of Parbatbhai Aahir @ Parbatbhai Bhimsinhbhai Karmur & Ors. Vs. State of Gujarat & Anr,; reported in (2017) 9 SCC 641 and in paragraph no.16, the Hon'ble Apex Court has summarized the broad principles with regard to exercise of powers under Section 482 Cr.P.C. in the case of compromise/settlement between the parties which emerges from precedent of the subjects as follows:-

i. "Section 482 preserves the inherent powers of the High Court to prevent an abuse of the process of any court or to secure the ends of justice. The provision does not confer new powers. It only recognizes and preserves powers which inhere in the High Court.

ii.The invocation of the jurisdiction of the High Court to quash a First Information Report or a criminal proceeding on the ground that a settlement has been arrived at between the offender and the victim is not the same as the invocation of jurisdiction for the purpose of compounding an offence. While compounding an offence, the power of the court is governed by the provisions of Section 320 of the Code of Criminal Procedure, 1973. The power to quash under Section 482 is attracted even if

the offence is non-compoundable.

iii. In forming an opinion whether a criminal proceeding or complaint should be quashed in exercise of its jurisdiction under Section 482, the High Court must evaluate whether the ends of justice would justify the exercise of the inherent power;

iv. While the inherent power of the High Court has a wide ambit and plenitude it has to be exercised; (i) to secure the ends of justice or (ii) to prevent an abuse of the process of any court;

v. The decision as to whether a complaint or First Information Report should be quashed on the ground that the offender and victim have settled the dispute, revolves ultimately on the facts and circumstances of each case and no exhaustive elaboration of principles can be formulated;

vi. In the exercise of the power under Section 482 and while dealing with a plea that the dispute has been settled, the High Court must have due regard to the nature and gravity of the offence. Heinous and serious offences involving mental depravity or offences such as murder, rape and dacoity cannot appropriately be quashed though the victim or the family of the victim have settled the dispute. Such offences are truly speaking not private in nature but have a serious impact upon society. The decision to continue with the trial in such cases is founded on the overriding element of public interest in punishing persons for serious offences;

vii. As distinguished from serious offences, there may be criminal cases which have an overwhelming or predominant element of a civil dispute. They stand on a distinct footing in so far as the exercise of the inherent power to quash is concerned;

viii. Criminal cases involving offences which arises from commercial, financial, mercantile, partnership or similar transactions with an essentially civil flavour may in appropriate situations fall for quashing where parties have settled the dispute;

ix. In such a case, the High Court may quash the criminal proceeding if in view of the compromise between the disputants, the possibility of a conviction is remote and the continuation of a criminal proceeding would cause oppression and prejudice; and x. There is yet an exception to the principle set out in propositions (viii) and (ix) above. Economic offences involving the financial and economic well-being of the state have implications which lie beyond the domain of a mere dispute between private disputants. The High Court would be justified in declining to quash where the offender is involved in an activity akin to a financial or economic fraud or misdemeanour. The consequences of the act complained of upon the financial or economic system will weigh in the balance."

11. The Apex Court has also laid down the guidelines where the criminal proceedings could be interfered and quashed in exercise of its power by the High Court in the following cases:-(i) R.P. Kapoor Vs. State of Punjab, AIR 1960 S.C. 866, (ii) State of Haryana Vs. Bhajanlal, 1992 SCC (Crl.)426, (iii) State of Bihar Vs. P.P. Sharma, 1992 SCC (Crl.)192 and (iv) Zandu Pharmaceutical Works Ltd. Vs. Mohd. Saraful Haq and another, (Para-10) 2005 SCC (Cri.) 283.

12. From the aforesaid decisions the Apex Court has settled the legal position for quashing of the proceedings at the initial stage. The test to be applied by the court is to whether uncontroverted allegation as made prima facie establishes the offence and the chances of ultimate conviction is bleak and no useful purpose is likely to be served by allowing criminal proceedings to be continue. In S.W. Palankattkar & others Vs. State of Bihar, 2002 (44) ACC 168, it has been held by the Hon'ble Apex Court that quashing of the criminal proceedings is an exception than a rule. The inherent powers of the High Court under Section 482 Cr.P.C itself envisages three circumstances under which the inherent jurisdiction may be exercised:-(i) to give effect an order under the Code, (ii) to prevent abuse of the process of the court ; (iii) to otherwise secure the ends of justice. The power of High Court is very wide but should be exercised very cautiously to do real and substantial justice for which the court alone exists.

13. With the assistance of the aforesaid guidelines, keeping in view the nature and gravity and the severity of the offence which are more particularly is private dispute and differences it is deem proper and meet to the ends of justice. The proceeding of the aforementioned case be quashed.

14. The present 482 Cr.P.C. application stands allowed. Keeping in view the law laid down by the Hon'ble Apex Court in the above referred judgment and in view of the statement of the parites made before this Court and as per the compromise made by the applicants as well as opposite party no.2 before the Mediation Center, and the observation made above, the entire proceedings of Case No. 20106/2019, Case Crime No. 129/2017, under Sections 498A, 323, 504, 495 I.P.C. and Section 3/4 D.P.Act, Police Station Thakurganj, District Lucknow is hereby quashed.

15. The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad or certified copy issued from the Registry of the High Court, Allahabad.

16. The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 15.04.2024 Arvind